

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #01	CCRB Case #: 201701495	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 02/23/2017 10:10 AM	Location of Incident: 83rd Precinct stationhouse cell area	18 Mo. SOL 8/23/2018	Precinct: 83		
Date/Time CV Reported Mon, 02/27/2017 10:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 02/27/2017 10:53 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jiayi Wang	02787	940849	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Judette Worrell	20234	959384	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jiayi Wang	Off. Language: Sergeant Jiayi Wang made remarks to § 87(2)(b) based upon race.	A . Unfounded
B . SGT Jiayi Wang	Discourtesy: Sergeant Jiayi Wang spoke discourteously to § 87(2)(b)	B . Unsubstantiated

Case Summary

On February 27, 2017, § 87(2)(b) filed this complaint with the CCRB via telephone. § 87(2)(b)

§ 87(2)(b)

On February 23, 2017, at approximately 10:10 a.m., § 87(2)(b) was arrested and transported to the 83rd Precinct stationhouse, where Sgt. Jiayi Wang of the 83rd Precinct allegedly called § 87(2)(b) a “black bitch” (**Allegation A: Offensive Language, unfounded, and Allegation B: Discourtesy, unsubstantiated**) and allegedly said, “Bitch, you’re going to jail for robbery,” (**Allegation B cont’d**) while they were in the cell area.

There is no video footage in this case.

Findings and Recommendations

Allegation (A) Offensive Language: Sergeant Jiayi Wang made remarks to § 87(2)(b) based upon race.

Allegation (B) Discourtesy: Sergeant Jiayi Wang spoke discourteously to § 87(2)(b) and her acquaintance, § 87(2)(b) were arrested for § 87(2)(b), and they were subsequently transported to the 83rd Precinct stationhouse. In her interview on October 23, 2017 (Board Review 02), § 87(2)(b) stated that while she was in the cell area, she called Sgt. Wang a “chink fucker,” and in response, he called her a “black bitch.” In her intake call on February 27, 2017 (Board Review 03), § 87(2)(b) stated that Sgt. Wang said, “Bitch, you’re going to jail for robbery,” and she made no mention of Sgt. Wang calling her a “black bitch.” § 87(2)(b) did not specifically mention any allegation in her re-open request letter.

In his telephone statement on March 12, 2018, § 87(2)(b) (Board Review 04) stated that § 87(2)(b) was screaming and cursing in the cell area because she needed to use the restroom or make a phone call. § 87(2)(b) was unable to recall whether Sgt. Wang made any reference towards § 87(2)(b)’s race or called her a “bitch.” § 87(2)(b) (Board Review 05), who was also in the cell area of the 83rd Precinct stationhouse on February 23, 2017 (Board Review 06), stated in his telephone statement on April 2, 2018 that he recalled an irate woman in the cell area asking to use the restroom and using profanities towards officers, but he was not cooperative in providing any additional information and did not mention any officer using the alleged language. The undersigned was unable to establish contact with § 87(2)(b) or § 87(2)(b) who also shared the cell area with § 87(2)(b).

Sgt. Wang (Board Review 07) stated that § 87(2)(b) did not yell at or use profanities towards him or any other officer, and he denied calling her a “black bitch” and saying, “Bitch, you’re going to jail for robbery.” Sgt. Wang denied using profanities towards § 87(2)(b) at any point or making any references towards her race or ethnicity. § 87(2)(b) and § 87(2)(b) s arresting officer, PO Judette Worrell of the 83rd Precinct (Board Review 08), stated that § 87(2)(b) cursed at officers the entire time she was in the cell. PO Worrell also denied that Sgt.

Wang made these statements, and she added that she has never heard Sgt. Wang use profanities towards anyone.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is therefore recommended that
Allegation A be closed as **unfounded**. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is therefore recommended that **Allegation B** be
closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED] has been a party to two additional CCRB complaints and has been named as a victim in five additional allegations (Board Review 09):
 - § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
- Sergeant Jiayi Wang has been a member-of-service for 12 years and this is the first CCRB complaint to which he has been a subject (Board Review 10).

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 9, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 01

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date